



# Civil Aviation (Declaratory Provisions) Act 1971

## 1971 CHAPTER 6

An Act to make declaratory provision with respect to such a particular flight and series of flights as are mentioned in section 1(3) of the Civil Aviation (Licensing) Act 1960 and with respect to the limitations which may be imposed by virtue of section 3(5) of the Air Corporations Act 1967. [17th February 1971]

**B**E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

### 1. It is hereby declared—

- (a) that in any instrument made under subsection (3) of section 1 of the Civil Aviation (Licensing) Act 1960 (which confers power to exempt by an instrument in writing a particular flight or series of flights from requirements of that section relating to air service licences) the flight or series of flights to which the exemption in question relates may be described by reference to the operator of any relevant aircraft, the terminal points of the flight or flights, the periods during which the flight or flights may occur or by reference to any other factor or to any combination of factors whatsoever;
- (b) that the powers as to which an order under section 3(5) of the Air Corporations Act 1967 may provide that they shall not be exercisable except as there mentioned include any power of either of the corporations within the meaning of that Act to provide air transport services within the meaning of that Act between particular points;

Declaratory provisions with respect to 1960 c. 38 s. 1(3) and 1967 c. 33 s. 3(5).

- (c) that an order under the said section 3(5) may be made with respect to any power of either of the said corporations to provide such services as aforesaid between particular points whether or not the corporation is providing or authorised to provide such services between those points in pursuance of an air service licence within the meaning of the said Act of 1960.

**2.** This Act may be cited as the Civil Aviation (Declaratory Short title. Provisions) Act 1971.